

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 2, 2026, AT 8:30 A.M.

12. S-CV-0055748 LAEZMAN, LINDA v. EL DON ESTATES HOA

Demurrer

A review of the court record reveals plaintiffs' first amended complaint was improperly rejected for filing on March 9, 2026. Plaintiffs shall re-file their first amended complaint on or before **July 7, 2026**, and the court will thereafter deem the first amended complaint timely filed. The demurrer to plaintiffs' first amended complaint is continued to **July 16, 2026**, at 8:30 a.m. in Department 3.

13. S-CV-0056214 CARSON, CHRISTOPHER v. BUDAC, ABIGAILA

Defendant Vitas Healthcare Corporation of California's Demurrer to Plaintiffs' Complaint

Defendant demurs to the third, fourth, fifth, and sixth causes of action in plaintiffs' complaint on the grounds the complaint does not allege facts sufficient to state the third cause of action for premises liability, fourth cause of action for negligence per se, fifth cause of action for elderly or disabled neglect, and sixth cause of action for vicarious liability. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, "[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits." (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

Third Cause of Action—Premises Liability

To state a claim for premises liability, plaintiff must establish: (1) duty, (2) breach, (3) proximate cause, and (4) damages. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1142.) The most important element for imposing a duty is control. (*Soto v. Union Pacific Railroad Co.* (2020) 45 Cal.App.5th 168, 177.)

Here, when taking the factual allegations in the complaint as true, plaintiff does not allege facts sufficient to state defendant controlled the property such that it owed a

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duty to plaintiffs. Accordingly, the demurrer is sustained with leave to amend as to the third cause of action.

Fourth Cause of Action—Negligence Per Se

Negligence per se is not a separate cause of action but instead “an evidentiary presumption that affects the standard of care in a cause of action for negligence.” (*Turner v. Seterus, Inc.* (2018) 27 Cal.App.5th 516, 534.) The court therefore treats the negligence per se allegations as a negligence cause of action. To that end, “negligence will be presumed if: (1) a person violated a statute or regulation, (2) that violation injured another person or their property, (3) the injury was of a type the statute or regulation was designed to prevent, and (4) the person or property injured was of the class the statute or regulation was designed to protect.” (*Mize v. Mentor Worldwide LLC* (2020) 51 Cal.App.5th 850, 865.)

Plaintiff’s complaint bases their negligence per se allegations on defendant’s alleged violations of Title 22 sections 87466 and 87469, subdivision (d).

Title 22 section 87466 provides

The licensee shall ensure that residents are regularly observed for changes in physical, mental, emotional and social functioning and that appropriate assistance is provided when such observation reveals unmet needs. When changes such as unusual weight gains or losses or deterioration of mental ability or a physical health condition are observed, the licensee shall ensure that such changes are documented and brought to the attention of the resident's physician and the resident's responsible person, if any.
(Cal. Code Regs., tit. 22, §§ 87466.)

Title 22 section 87469, subdivisions (c) and (d) provides

(c) If a resident who has an advance directive and/or request regarding resuscitative measures form on file experiences a medical emergency, facility staff shall do one of the following:

- (1) Immediately telephone 9-1-1, present the advance directive and/or request regarding resuscitative measures form to the responding emergency medical personnel and identify the resident as the person to whom the order refers.
(2) Immediately give the advance directive and/or request regarding resuscitative measures form to a physician, registered nurse or licensed vocational nurse if the physician or nurse is in the resident's presence at the time of the emergency and assumes responsibility.

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(3) Specifically for a terminally ill resident that is receiving hospice services and has completed an advance directive and/or request regarding resuscitative measures form pursuant to Health and Safety Code section 1569.73(c), and is experiencing a life-threatening emergency as displayed by symptoms of impending death that is directly related to the expected course of the resident's terminal illness, the facility may immediately notify the resident's hospice agency in lieu of calling emergency response (9-1-1). For emergencies not directly related to the expected course of the resident's terminal illness, the facility staff shall immediately telephone emergency response (9-1-1).

(4) Facilities that employ health care providers, other than Home Health Agencies or Hospice Agencies, may comply with Health and Safety Code Section 1569.74.

(d) After following the procedure in Section 87469(c)(1), (2), (3), or (4), facility staff shall notify the resident's hospice agency and Health Care Surrogate Decision Maker, if applicable.

(Cal. Code Regs., tit. 22, §§ 87469, subds. (c)–(d).)

Notably, “licensee” is defined as “the individual, firm, partnership, corporation, association or county having the authority and responsibility for the operation of a licensed facility.” (Cal. Code Regs., tit. 22, § 87101, subd. (1)(4).)

Here, when taking the allegations in the complaint as true, plaintiff does not allege facts sufficient to state the above statutes imposed a duty on defendant that defendant thereafter breached. Accordingly, the demurrer is sustained with leave to amend as to the fourth cause of action.

Fifth Cause of Action—Elderly or Disabled Neglect

Neglect is defined as either “(1) The negligent failure of any person having the care or custody of an elder or a dependent adult to exercise that degree of care that a reasonable person in a like position would exercise [or] (2) The negligent failure of an elder or dependent adult to exercise that degree of self care that a reasonable person in a like position would exercise.” (Welf. & Inst. Code, § 15610.57, subds. (a)(1)–(2).) This includes, but is not limited to:

(1) Failure to assist in personal hygiene, or in the provision of food, clothing, or shelter.

(2) Failure to provide medical care for physical and mental health needs. A person shall not be deemed neglected or abused for the sole

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reason that the person voluntarily relies on treatment by spiritual means through prayer alone in lieu of medical treatment.

(3) Failure to protect from health and safety hazards.

(4) Failure to prevent malnutrition or dehydration.

(5) Substantial inability or failure of an elder or dependent adult to manage their own finances.

(6) Failure of an elder or dependent adult to satisfy any of the needs specified in paragraphs (1) to (5), inclusive, for themselves as a result of poor cognitive functioning, mental limitation, substance abuse, or chronic poor health.

(*Id.* at subds. (b)(1)–(6).)

Importantly, neglect refers “not of the undertaking of medical services, but of the failure to provide medical care.” (*Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 404.) Also, the act does not provide liability for simple or gross negligence by health care providers. (Welf. & Inst. Code § 15657.2; *Sababin v. Superior Court* (2006) 144 Cal.App.4th 81, 88.) Instead, plaintiff must plead, and courts must address, four factors to determine whether defendants’ conduct constitutes neglect. (*Id.* at p. 406–07.) Specifically, “plaintiff must allege . . . facts establishing that defendant . . . (1) had responsibility for meeting the basic needs of the elder or dependent adult, such as nutrition, hydration, hygiene or medical care; (2) knew of conditions that made the elder or dependent adult unable to provide for his or her own basic needs; and (3) denied or withheld goods or services necessary to meet the elder or dependent adult’s basic needs, either with knowledge that injury was substantially certain to befall the elder or dependent adult (if the plaintiff alleges oppression, fraud or malice) or with conscious disregard of the high probability of such injury (if the plaintiff alleges recklessness) . . . [and 4] the neglect caused the elder or dependent adult to suffer physical harm, pain or mental” (*Ibid.* [internal citations omitted].) Such facts must be plead with specificity. (*Id.* at p. 407.)

Here, when taking the factual allegations in the complaint as true, plaintiff does not allege specific facts sufficient to state defendant’s conduct constitutes neglect. Accordingly, the demurrer is sustained with leave to amend as to the fifth cause of action.

Sixth Cause of Action—Vicarious Liability

Where, as here, plaintiffs assert a theory of respondeat superior against defendants, “an employer is vicariously liable for the torts of its employees committed within the

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scope of the employment. The plaintiff has the burden of proof to demonstrate the negligent act of the employee was committed within the scope of employment. [Citation.] Whether an act is within the scope of employment is a question of fact, unless the facts are undisputed and no conflicting inferences are possible, in which case the question is one of law.” (*Hartline v. Kaiser Foundation Hospitals* (2005) 132 Cal.App.4th 458, 465.) Additionally, “an employee's willful, malicious and even criminal torts may fall within the scope of his or her employment for purposes of respondeat superior, even though the employer has not authorized the employee to commit crimes or intentional torts.” (*Lisa M. v. Henry Mayo Newhall Memorial Hospital* (1995) 12 Cal.4th 291, 296–97.)

Here, when taking the factual allegations in the complaint as true, plaintiff does not allege facts sufficient to state the vicarious liability cause of action. Accordingly, the demurrer is sustained with leave to amend as to the sixth cause of action.

In sum, the demurrer is sustained with leave to amend as to the third, fourth, fifth, and sixth causes of action. Plaintiff shall file and serve an amended complaint on or before **July 13, 2026**.

14. S-CV-0056468 KM AUTO REPAIR v. SHIVA AUTO REPAIR

Defendant Ranjeet Singh’s Motion for Leave to File Cross-Complaint

Preliminary Matters

The court first notes that all motions heard on the law and motion calendar must include the language from Placer County Local Rule, Rule 20.2.3, subdivision (C) in the notice of motion.

Moreover, the court, on its own motion, strikes the cross-complaint—filed with the court on February 26, 2026—from the record because it was filed without leave of court after defendants already answered and is therefore an improper filing.

Ruling on Motion

Defendant Ranjeet Singh seeks leave of court to file a cross-complaint.

A defendant who fails to file a cross-complaint at the time of filing the answer must seek leave from the court to file the cross-complaint. (Code Civ. Proc., §§ 426.50, 428.50, subd. (a).) Leave to file a compulsory cross-complaint is generally granted